

Vacant Land Disclosure Statement



NAME: _____

DATE SELLER PURCHASED PROPERTY: _____

GENERAL INFORMATION ABOUT PROPERTY:

PROPERTY ADDRESS: _____

LEGAL DESCRIPTION: _____

NOTICE TO BUYER AND SELLER:

In Florida, a Seller is obligated to disclose to a Buyer all known facts that materially affect the value of the property being sold and that are not readily observable. This disclosure statement is designed to assist Seller in complying with the disclosure requirements under Florida law and to assist the Buyer in evaluating the property being considered. This disclosure statement concerns the condition of the real property located at above address. It is not a warranty of any kind by the Seller or any Licensee in this transaction. It is not a substitute for any inspections or warranties the parties may wish to obtain. It is based only upon Seller's knowledge of the property condition. This disclosure is not intended to be a part of any contract for sale and purchase. All parties may refer to this information when they evaluate, market, or present Seller's property to prospective Buyers.

The following representations are made by the Seller(s) and are not the representations of any real estate licensees.

1. CLAIMS & ASSESSMENTS

a. Are you aware of existing, pending, or proposed legal actions, claims, special assessments, municipal service taxing or benefit charges or unpaid assessments affecting the property? NO ☐ YES ☐ If yes, explain: _____

b. Have any local, state, or federal authorities notified you of a violation of governmental regulation or violation of covenant restrictions? NO ☐ YES ☐ If yes, explain: _____

c. Are you aware of any eminent domain proceedings involving the property? NO ☐ YES ☐ If yes, explain: _____

2. USE RESTRICTIONS

Are You Aware:

a. of any subdivision, municipality or other recorded covenants, conditions or restrictions? NO ☐ YES ☐

b. of any resale restrictions? NO ☐ YES ☐

c. of any restrictions on leasing the property? NO ☐ YES ☐

d. of any right of first refusal to purchase the property? NO ☐ YES ☐

e. If any answer to questions 2a-2d is yes, please explain: _____

3. SURVEY

a. Has the land been surveyed? NO ☐ YES ☐ If yes, which person or company performed the survey: _____

b. Has this land been platted? NO ☐ YES ☐ If yes, has a certificate of survey been completed? NO ☐ YES ☐

c. Are you aware of any encroachments or boundary line disputes? NO ☐ YES ☐

d. Are you aware of any easements other than utility/drainage easements? NO ☐ YES ☐

e. Are you aware if the property is in an earthquake zone? NO ☐ YES ☐

f. Are you aware if the property contains wetlands area? NO ☐ YES ☐

Seller (____) (____) and Buyer (____) (____) acknowledge receipt of a copy of this page, which is Page 1 of 3 Pages.

4. ENVIRONMENT

Are You Aware:

a. of any substances, materials, products, pollutants or contaminants which may be an environmental hazard, such as, but not limited to, asbestos, urea formaldehyde, radon gas, fuel, propane or chemical storage tanks (active or abandoned), or contaminated soil or water on the property? NO ☐ YES ☐ If yes, explain: _____

b. of any abandoned wells, buried storage tanks or buried debris or waste on the property? NO ☐ YES ☐ If yes, explain: _____

c. of any clean up, repairs, or remediation of the property due to hazardous substances, pollutants or contaminants? NO ☐ YES ☐ If yes, explain: _____

d. of any endangered or protected species on the property such as scrub jays, manatees, turtles, sea turtles or nests of endangered or protected species? NO ☐ YES ☐

e. of any electromagnetic fields located on the property? NO ☐ YES ☐

f. of any condition or proposed change in the vicinity of the property that does or will materially affect the value of the property, such as, but not limited to, proposed development or proposed roadways? NO ☐ YES ☐

If any answer to questions 4a-4f is yes, please explain: _____

5. FLOOD

Are You Aware:

a. if the property is designated in a 100 year flood plain? NO ☐ YES ☐

b. if the property has been flooded? NO ☐ YES ☐

c. if there has been drainage problems affecting the property or adjacent properties? NO ☐ YES ☐

If any answer to questions 5a-5c is yes, please explain: _____

6. CONDITION OF THE PROPERTY

a. Have any soil tests been performed? NO ☐ YES ☐

b. Are you aware of any fill or uncompacted soils? NO ☐ YES ☐

c. Are you aware of any settling, soil movement, or sinkhole problems on the property or on adjacent properties? NO ☐ YES ☐

d. Are you aware of any dead or diseased trees on the property? NO ☐ YES ☐

If any answer to questions 6a-6d is yes, please explain: _____

Seller (____) (____) and Buyer (____) (____) acknowledge receipt of a copy of this page, which is Page 2 of 3 Pages.

7. UTILITIES

- a. What type of irrigation does the property have? _____

- b. Have percolation tests been performed? NO ☐ YES ☐ yes, when and by which person or company: _____

- c. Does the property have connection to the following: public water? NO ☐ YES ☐ public sewer? NO ☐ YES ☐
private water system off the property? NO ☐ YES ☐ water well? NO ☐ YES ☐ septic tank? NO ☐ YES ☐
electric utility? NO ☐ YES ☐ natural gas service? NO ☐ YES ☐
- d. Does the boundary of the property have connection to the following: public water system access? NO ☐ YES ☐
private water system access? NO ☐ YES ☐ electric service access? NO ☐ YES ☐ natural gas access? NO ☐ YES ☐
telephone system access? NO ☐ YES ☐
- e. Have any utility charges been paid? NO ☐ YES ☐ If yes, which charges were paid?: _____

8. OTHER MATTERS:

Is there anything else that materially affects the value of the property? NO ☐ YES ☐

If yes, explain: _____

ACKNOWLEDGEMENT OF SELLER

The undersigned Seller represents that the information set forth in the above disclosure statement is accurate and complete to the best of the Seller's knowledge on the date signed below. Seller does not intend for this disclosure statement to be a warranty or guaranty of any kind. Seller hereby authorizes disclosure of the information contained in this disclosure statement to prospective Buyers of the property. Seller understands and agrees that Seller will notify the Buyer in writing within five business days after Seller becomes aware that any information set forth in this disclosure statement has become inaccurate or incorrect in any way during the term of the pending purchase by the Buyer.

Seller: _____ / _____ Date: _____
(signature) (print)

Seller: _____ / _____ Date: _____
(signature) (print)

RECEIPT AND ACKNOWLEDGMENT OF BUYER

Seller is using this form to disclose Seller's knowledge of the condition of the property as of the date signed by Seller. This disclosure form is not a warranty of any kind. The information contained in the disclosure is limited to information to which the seller has knowledge. It is not intended to be a substitute for any inspections or professional advice the Buyer may wish to obtain. Independent professional inspections are encouraged and may be helpful to verify the condition of the property. Buyer understands these representations are not made by any real estate licensee.

Buyer hereby acknowledges having received a copy of this disclosure statement.

Buyer: _____ / _____ Date: _____
(signature) (print)

Buyer: _____ / _____ Date: _____
(signature) (print)

Seller (____) (____) and Buyer (____) (____) acknowledge receipt of a copy of this page, which is Page 3 of 3 Pages.